

Redline – Newcastle Core Zoning Code

v0.16-draft → v0.17-draft · changed passages only

How to read this redline. Struck-through text was removed; red text was added immediately after it. Only the TEXT of the Code is compared – natively rendered layout (district spreads, Type plates, district maps) and images are not shown here.

2 changed passage(s) shown below, each under its Section location. Unchanged text is omitted.

Article 3 Thoroughfares › 3. THOROUGHFARE STANDARDS › e. BASIS FOR MAXIMUM GRADES

E. BASIS FOR MAXIMUM GRADES

1. The maximum grades stated on the Type pages in Section 2 are calibrated to each Type's context rather than to its ownership. The Newcastle Road, Driveway, and Entrance Ordinance, repealed concurrent with this Article, set a single maximum grade by ownership — 8% for a Public Road and 10% for a Private Road (former Table 2.2) — without regard to whether the way served a pedestrian-scaled village street or a rural conduit. This Article replaces that ownership-based figure with grades calibrated to the rural-to-urban transect.
2. The urban Street Types are held at or below the former Public Road maximum: a Main Street (S1) is capped at 6% and a Village or Neighborhood Street (S2, S3) at 8%, in the interest of pedestrian comfort, accessibility, on-street parking, and winter walkability. The rural Road Types tolerate steeper grades — a Connector Road (R1) at 10% and a Rural Road or Rural Lane (R2, R3) at 12% — because they follow natural topography in low-density terrain, carry little or no pedestrian traffic, and serve the fewest lots. The repealed Ordinance itself directed that “road grades shall conform as closely as possible to the original topography”; permitting a modestly steeper rural grade honors that instruction and reduces the cut, fill, and earthwork imposed on the rural Districts (D1, D2), where this Code prioritizes minimal alteration of the landscape.
3. The maximum grades stated on the Type pages in Section 2 are calibrated to each Type's context rather than to its ownership. Prior Town standards set a single maximum grade by ownership — 8% for a public road and 10% for a private road — without regard to whether the way served a pedestrian-scaled village street or a rural conduit. This Article replaces that ownership-based figure with grades calibrated to the rural-to-urban transect.
4. The urban Street Types are held at or below the prior 8% public-road maximum: a Main Street (S1) is capped at 6% and a Village or Neighborhood Street (S2, S3) at 8%, in the interest of pedestrian comfort, accessibility, on-street parking, and winter walkability. The rural Road Types tolerate steeper grades — a Connector Road (R1) at 10% and a Rural Road or Rural Lane (R2, R3) at 12% — because they follow natural topography in low-density terrain, carry little or no pedestrian traffic, and serve the fewest lots. Permitting a modestly steeper rural grade keeps road grades as close as possible to the original topography and reduces the cut, fill, and earthwork imposed on the rural Districts (D1, D2), where this Code prioritizes minimal alteration of the landscape.
5. The steeper rural maximums relax no safety-critical standard. The 2% maximum grade within 75 ft of an intersection (Section 9), the requirement that all changes in grade be connected by vertical curves providing the minimum stopping sight distance of Table 3.2 (Section 10), and the sight-distance and intersection-geometry standards generally, are fixed independently of a Type's maximum grade and apply to every Type.
6. Grades for the Highway Commercial (R4) and Rural Highway (R5) cartways defer to MaineDOT design standards under Section 12, consistent with the status of US Route 1 as a State Highway.

Article 3 Thoroughfares › 14. NONCONFORMING THOROUGHFARES › d. SUBSTANTIAL RECONSTRUCTION

b. The Code Enforcement Officer or Planning Board may require the reservation of a 20 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of pedestrian traffic or utilities.

c. The Permitting Authority may require the reservation of a 50 ft wide easement at the end of a dead-end road, in line with the road, to provide for continuation of the road.

2. "Substantial reconstruction" ~~is defined in the same manner as in the prior Newcastle Road, Driveway, and Entrance Ordinance, namely:~~ means improvements to a previously constructed Thoroughfare, including but not limited to extensions to the length or width, the rip up and replacement of sub-surface road building materials for a length or section of the Thoroughfare that goes beyond activities associated with General Maintenance, the addition of sidewalks or wholesale rebuilding of pre-existing sidewalks, or a change from one permanent road surfacing material to another such as from dirt to asphalt, asphalt to concrete, or asphalt to dirt.

E. RECLASSIFICATION TO RESOLVE NONCONFORMITY